

CONSTITUTION OF THE AUSTIN HEALEY OWNERS CLUB (NSW) INC.

21 November 2012

APPROVED BY SPECIAL RESOLUTION ON 13 MARCH 2013

Based on the Model Constitution – Schedule 1 to the Associations Incorporation
Regulation 2010.

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Part 1 - Preliminary

1.1 Preamble

This constitution is based on the NSW Fair Trading Model Constitution.

For further information in respect of the Associations Incorporation Act 2009 No 7 and to Associations Incorporation Regulation 2010 refer to www.legislation.nsw.gov.au

1.2 Definitions

In this constitution:

"Act" means the Associations Incorporation Act 2009 as amended or replaced.

"Annual General Meeting" means an Annual General Meeting of the Club convened in accordance with Rule 6.2 and Rule 6.3.

"Associate Member" means a financial member of the club who does not fulfil the ownership requirements of clause 4.1(2)(b)

"Club" means the Austin Healey Owners Club (NSW) Inc.

"Club Registrar" means the person elected at the most recent Annual General Meeting to maintain the register of cars for the purpose of Conditional Registration

"Committee" means the Committee established in accordance with the Act to manage the affairs of the Club;

"Concours D'Elegance" means the annual showing and judging of vehicles of The Marque as determined by the Club.

"Confederation of Australian Motor Sport" or **"CAMS"** refers to the body known as Confederation of Australian Motor Sport Ltd. ABN 55 069 045 665;

"Director-General" means the Director-General of the Department of Services, Technology and Administration.

"Financial Year" means the year ending June 30th

"General Meeting" means a General Meeting convened in accordance with Rule 6.1;

"Marque" is limited to all vehicles bearing the Healey name either on its own or in association.

"Member" means a financial member of the Club;

"Membership Secretary" means:

(a) the person holding office under this constitution as Membership Secretary of the Club,

or,

(b) if no such person holds that office - the President of the Club.

"Office Bearer" means the holder of an office referred to in Rule 5.2(2) of this constitution

"Ordinary Committee member" means a member of the Committee who is not an office-bearer of the Club as referred to in clause 5.2 (2);

"Other Motor Club" means a Club, body or organisation, corporate or incorporated, whose objects are principally the preservation of the use in competition of motor vehicles either in general, or by marque.

"Public Officer" means:

- (a) the person holding office under this constitution as public officer of the Club,
or

- a. if no such person holds that office - the President of the Club.

“Regulation” means the *Associations Incorporation Regulation 2010* as amended or replaced

“RMS” means the New South Wales Roads and Maritime Services or its successors;

“Secretary” means:

- (a) the person holding office under this constitution as Secretary of the Club, or
- (b) if no such person holds that office - the Public Officer of the Club.

“Special General Meeting” means a General Meeting of the Club other than an Annual General Meeting or a General Meeting.

“Special Resolution” means a resolution:

- (a) of which at least 21 days' notice has been given before the date on which the meeting is held, stating the terms of the resolution and that the resolution is intended to be passed as a special resolution;

and,

- (b) which is supported by at least three-quarters of the votes cast by members of the Club who, under this constitution, are entitled to vote on the proposed resolution.

(2) In this constitution:

- (a) a reference to a function includes a reference to a power, authority and duty, and
- (b) a reference to the exercise of a function includes, if the function is a duty, a reference to the performance of the duty.

(3) The provisions of the *Interpretation Act 1987* apply to and in respect of this constitution in the same manner as those provisions would so apply if this constitution were an instrument made under the Act.

Part 2 - Objectives

The Club is formed with the following objects:

(1) To locate, and to compile a Register in respect to, all vehicles of the Marque within New South Wales.

(2) To provide a forum for exchange of technical information, literature, spare parts, mechanical skills and every other material and facility in order that each vehicle of the Marque may be preserved, renovated, and maintained in the best possible condition.

(3) To organise and to conduct for Members, events of a social informative or competitive nature, including Concours D'Elegance, sporting events, touring, and attendances at gatherings of any sport associated with the Marque or with any other motor vehicles, and to invite to selected events members of selected Other Motor Clubs.

(4) To correspond with every other Club and organisation within and without Australia that has as its object the preservation and maintenance of the Marque, and to co-operate with every such Club or organisation which offers or desires assistance from or association with the Club in pursuit of these objects.

- (5) To maintain affiliation with the Confederation of Australian Motor Sports (CAMS), or any successor to that body, observing and complying with the provisions of that affiliation and the National Competition Rules.
- (6) To foster driver education, safety, and courtesy on the roads and in all competitions in which Members of the Club participate, and friendship and co-operation between Members of the Club and those of other motor Clubs in pursuit of these objects.
- (7) To document, and publicise the activities of the Club and the presence and maintenance of The Marque in Australia, utilising a Club magazine, a library of technical and historical material, and such other means as the Committee may decide.

Part 3. Legal Capacity and Powers

In accordance with the Act the Club has the legal capacity and powers of an individual.

Part 4 - Membership

4.1 *Membership generally*

- (1) There are two grades of membership: Member and Associate Member.
- (2) A person is eligible to be a Member of the Club if:
 - (a) the person is a natural person, and
 - (b) has proved, in a manner satisfactory to the Committee, present or past ownership of a vehicle of the Marque, and
 - (c) the person has applied and been approved for membership of the Club by the Committee.
- (3) The partner of any such Member shall also be eligible for membership jointly with that Member.
- (4) A person is eligible to be an Associate Member of the Club if:
 - (a) the person is a natural person, and
 - (b) the person has applied and been approved for membership of the Club by the Committee.
- (5) A person who has been expelled from membership shall not be eligible for membership again, unless the Club shall so determine in General Meeting.

4.2 *Rights of Members and Associate Members*

- (1) A Member has the right to:
 - (a) Attend all meetings and functions of the Club;
 - (b) Vote;
 - (c) Stand for election or be appointed as an Office Bearer or Ordinary Committee Member in accordance with Section 5.3 of this constitution;
 - (d) Receive the club magazine.
- (2) An Associate Member has the right to:
 - (a) Attend all meetings and functions of the Club;

- (b) Receive the club magazine.

4.3 Application for membership

- (1) An application for membership of the Club shall be made by the applicant(s) in writing on the form set out in Appendix 1 to this constitution, together with relevant payment including once only Joining Fee, to the Membership Secretary.
- (2) As soon as practicable after receiving an application for membership, the Membership Secretary shall refer the application to the Committee which shall determine whether to approve or to reject the application.
- (3) Where the Committee determines to approve an application for membership, the Membership Secretary shall, as soon as practicable after that determination, notify the applicant of that approval.
- (4) The Membership Secretary shall advise the Secretary of the new membership, enter the applicant(s) name in the Register of Members and, upon the name being so entered the applicant(s) becomes a Member of the Club.

4.4 Life Membership

- (1) The Club may, by Special Resolution, put to a General Meeting, extend to selected persons an invitation to honorary life membership which, if accepted, will entitle the honorary life Member to full membership rights and entitlements for life without payment of a fee at any time.
- (2) Persons who may be selected for invitation to honorary life membership shall include such persons who in the judgement of the Club have by special achievement, endeavour or attribute made a significant and permanent or unique contribution to the fame or longevity of the Marque or of the Club, whether within or without New South Wales.

4.5 Cessation of membership

A person ceases to be a member of the Club if the person:

- (a) dies, or
- (b) resigns membership, or
- (c) is expelled from the Club, or
- (d) fails to pay the annual membership fee under clause 4.9 (2) within 3 months after the fee is due.

4.6 Membership entitlements not transferable

A right, privilege or obligation which a person has by reason of being a member of the Club:

- (a) is not capable of being transferred or transmitted to another person, and
- (b) terminates on cessation of the person's membership.

4.7 Resignation of membership

- (1) A member of the Club may resign from membership of the Club by first giving to the Membership Secretary written notice of at least one month (or such other period as the Committee may determine) of the member's intention to resign and, on the expiration of the period of notice, the member ceases to be a member.
- (2) If a member of the Club ceases to be a member under subclause (1) and in every other case where a member ceases to hold membership, the Membership Secretary must

make an appropriate entry in the register of members recording the date on which the member ceased to be a member.

4.8 Register of members

- (1) The Membership Secretary of the Club must establish and maintain a register of members of the Club specifying the name and postal or residential address of each person who is a member of the Club together with the date on which the person became a member.
- (2) The register of members must be kept in New South Wales:
 - (a) at the main premises of the Club, or
 - (b) if the Club has no premises, at the address of the Membership Secretary.
- (3) The register of members must be open for inspection, free of charge, by any member of the Club at any reasonable hour.
- (4) A member of the Club may obtain a copy of any part of the register on payment of a fee of not more than \$1 for each page copied.

4.9 Fees and subscriptions

- (1) A member of the Club must, on admission to membership, pay to the Club the membership application fee determined by the Committee. Payment is to be made within 28 days of admission to membership.
- (2) In addition to any amount payable by the member under subclause (1), a member of the Club must pay to the Club an annual membership fee as determined by the Committee. Payment is to be made before 1 January in each calendar year

4.10 Members' liabilities

The liability of a member of the Club to contribute towards the payment of the debts and liabilities of the Club or the costs, charges and expenses of the winding up of the Club is limited to the amount, if any, unpaid by the member in respect of membership of the Club as required by clause 4.9(2).

4.11 Resolution of disputes

- (1) A dispute between a member and another member (in their capacity as members) of the Club, or a dispute between a member or members and the Club, is to be referred to a community justice centre for mediation under the *Community Justice Centres Act 1983*.

4.12 Disciplining of members

- (1) A complaint may be made to the Committee by any person who is a member of the Club:
 - (a) has refused or neglected to comply with a provision or provisions of this constitution, or
 - (b) has wilfully acted in a manner prejudicial to the interests of the Club.
- (2) The Committee may refuse to deal with a complaint if it considers the complaint to be trivial or vexatious in nature.
- (3) If the Committee decides to deal with the complaint, the Committee:
 - (a) must cause notice of the complaint to be served on the member concerned, and

- (b) must give the member at least 14 days from the time the notice is served within which to make submissions to the Committee in connection with the complaint, and
 - (c) must take into consideration any submissions made by the member in connection with the complaint.
- (4) The Committee may, by resolution, expel the member from the Club or suspend the member from membership of the Club if, after considering the complaint and any submissions made in connection with the complaint, it is satisfied that the facts alleged in the complaint have been proved and the expulsion or suspension is warranted in the circumstances.
- (5) If the Committee expels or suspends a member, the Secretary must, within 7 days after the action is taken, cause written notice to be given to the member of the action taken, of the reasons given by the Committee for having taken that action and of the member's right of appeal under clause 4.13.
- (6) The expulsion or suspension does not take effect:
- (a) until the expiration of the period within which the member is entitled to appeal against the resolution concerned, or
 - (b) if within that period the member exercises the right of appeal, unless and until the Club confirms the resolution under clause 4.13, whichever is the later.

4.13 Right of appeal of disciplined member

- (1) A member may appeal to the Club in General Meeting against a resolution of the Committee under clause 4.12, within 7 days after notice of the resolution is served on the member, by lodging with the Secretary a notice to that effect.
- (2) The notice may, but need not, be accompanied by a statement of the grounds on which the member intends to rely for the purposes of the appeal.
- (3) On receipt of a notice from a member under subclause (1), the Secretary must notify the Committee which is to convene a General Meeting of the Club to be held within 28 days after the date on which the Secretary received the notice.
- (4) At a General Meeting of the Club convened under subclause (3):
- (a) no business other than the question of the appeal is to be transacted, and
 - (b) the Committee and the member must be given the opportunity to state their respective cases orally or in writing, or both, and
 - (c) the members present are to vote by secret ballot on the question of whether the resolution should be confirmed or revoked.
- (5) The appeal is to be determined by a simple majority of votes cast by members of the Club.

Part 5 - The Committee

5.1 Powers of the Committee

Subject to the Act, the Regulation and this constitution and to any resolution passed by the Club in General Meeting, the Committee:

- (a) is to control and manage the affairs of the Club, and

(b) may exercise all such functions as may be exercised by the Club, other than those functions that are required by this constitution to be exercised by a General Meeting of Members of the Club, and

(c) has power to perform all such acts and do all such things as appear to the Committee to be necessary or desirable for the proper management of the affairs of the Club.

5.2 *Composition and membership of Committee*

(1) The Committee is to consist of at least 3 members and shall include:

(a) the office-bearers of the Club, and

(b) selected Ordinary Committee Members, each of whom is to be elected at the Annual General Meeting of the Club under clause 5.3.

(c) any other Ordinary Committee Member as may be determined by the Committee.

(2) The Office-Bearers of the Club are as follows:

President

Vice President

Treasurer

Secretary

Membership Secretary

Club Registrar

(4) A Committee member may not hold more than 2 offices other than at the express determination of the Committee.

(5) A Committee member may not hold both of the offices of President and Vice-President.

(6) Each member of the Committee is, subject to this constitution, to hold office until the conclusion of the Annual General Meeting following the date of the member's election or appointment, but is eligible for re-election.

5.3 *Election of Committee members*

(1) Nominations of candidates for election as office-bearers of the Club or as ordinary Committee members:

(a) must be made in writing, signed by two members of the Club and accompanied by the written consent of the candidate which may be endorsed on the form of the nomination (Appendix 3 of this Constitution), and

(b) must be delivered to the Secretary of the Club at least 7 days before the date fixed for the holding of the Annual General Meeting at which the election is to take place.

(2) If insufficient nominations are received to fill all vacancies on the Committee, the candidates nominated are taken to be elected and further nominations are to be received at the Annual General Meeting.

(3) If insufficient further nominations are received, any vacant positions remaining on the Committee are taken to be casual vacancies.

- (4) If the number of nominations received is equal to the number of vacancies to be filled, the persons nominated are taken to be elected.
- (5) If the number of nominations received exceeds the number of vacancies to be filled, a ballot is to be held.
- (6) The ballot for the election of office-bearers and ordinary Committee members of the Committee is to be conducted at the Annual General Meeting in such usual and proper manner as the Committee may direct.
- (7) A nomination of a candidate for election under this clause is not valid if that candidate has been nominated for election to another office at the same election unless a two third majority approves such nomination.
- (8) A position of Committee Member or office-bearer may be held jointly by two persons simultaneously where this is approved by the majority of votes by those present in person at an Annual General Meeting.
- (9) A person nominated as a candidate for election as an office-bearer or as an ordinary Committee member of the Club must be a Member of the Club.

5.4 Secretary

- (1) The Secretary of the Club must, as soon as practicable after being appointed as Secretary, lodge notice with the Club of his or her address.
- (2) It is the duty of the Secretary to keep minutes of:
 - (a) all appointments of office-bearers and members of the Committee; and
 - (b) the names of members of the Committee present at a Committee meeting or a General Meeting or a Special General Meeting; and
 - (c) all proceedings at Committee meetings and General Meetings and Special General Meetings; and
 - (d) correspondence received and issued by the Club.
- (3) Minutes of proceedings at a meeting must be accepted by the next meeting following publication of those minutes. If applicable, appropriate amendments to the former minutes shall be recorded in the latter meeting's minutes.

5.5 Treasurer

It is the duty of the treasurer of the Club to ensure:

- (a) that all money due to the Club is collected and received and that all payments authorised by the Club are made, and
- (b) that correct books and accounts are kept showing the financial affairs of the Club, including full details of all receipts and expenditure connected with the activities of the Club.

5.6 Casual vacancies

- (1) In the event of a casual vacancy occurring in the membership of the Committee, the Committee may appoint a member of the Club to fill the vacancy and the member so appointed is to hold office, subject to this constitution, until the conclusion of the Annual General Meeting next following the date of the appointment.
- 2) A casual vacancy in the office of a member of the Committee occurs if the member:
 - (a) dies, or
 - (b) ceases to be a member of the Club, or

- (c) becomes a bankrupt within the meaning of the Bankruptcy Act 1996 of the Commonwealth, or
- (d) resigns office by notice in writing given to the Secretary, or
- (e) is removed from office under clause 5.7, or
- (f) becomes a mentally incapacitated person, or
- (g) is absent without the consent of the Committee from 3 consecutive meetings of the Committee, or
- (h) is convicted of an offence involving fraud or dishonesty for which the maximum penalty on conviction is imprisonment for not less than 3 months, or
- (i) is prohibited from being a director of a company under Part 2D.6 (Disqualification from managing corporations) of the *Corporations Act 2001* of the Commonwealth.

5.7 Removal of Committee members

- (1) The Club in General Meeting may by resolution remove any member of the Committee from the office of member before the expiration of the member's term of office and may by resolution appoint another person to hold office until the expiration of the term of office of the member so removed.
- (2) If a member of the Committee to whom a proposed resolution referred to in subclause (1) relates makes representations in writing to the Secretary or President (not exceeding a reasonable length) and requests that the representations be notified to the members of the Club, the Secretary or the President may send a copy of the representations to each member of the Club or, if the representations are not so sent, the member is entitled to require that the representations be read out at the meeting at which the resolution is considered.

5.8 Committee meetings and quorum

- (1) The Committee must meet at least 3 times in each period of 12 months at such place and time as the Committee may determine.
- (2) Additional meetings of the Committee may be convened by the President or by any member of the Committee.
- (3) Oral or written notice of a meeting of the Committee must be given by the Secretary to each member of the Committee at least 48 hours (or such other period as may be unanimously agreed on by the members of the Committee) before the time appointed for the holding of the meeting.
- (4) Notice of a meeting given under subclause (3) must specify the general nature of the business to be transacted at the meeting and no business other than that business is to be transacted at the meeting, except business which the Committee members present at the meeting unanimously agree to treat as urgent business.
- (5) Any 3 members of the Committee constitute a quorum for the transaction of the business of a meeting of the Committee.
- (6) No business is to be transacted by the Committee unless a quorum is present and if, within half an hour of the time appointed for the meeting, a quorum is not present, the meeting is to stand adjourned to the same place and at the same hour of the same day in the following week (unless another place is specified at the time of the adjournment by the person presiding at the meeting or communicated by written notice to members given before the day to which the meeting is adjourned).

(7) If at the adjourned meeting a quorum is not present within half an hour of the time appointed for the meeting, the meeting is to be dissolved.

(8) At a meeting of the Committee:

(a) the President or, in the President's absence, the vice-President is to preside, or

(b) if the President and the vice-President are absent or unwilling to act, such one of the remaining members of the Committee as may be chosen by the members present at the meeting is to preside.

5.9 *Delegation by Committee to sub-Committee*

(1) The Committee may, by instrument in writing, delegate to one or more sub-Committees (consisting of such member or members of the Club as the Committee thinks fit) the exercise of such of the functions of the Committee as are specified in the instrument, other than:

(a) this power of delegation, and

(b) a function which is a duty imposed on the Committee by the Act or by any other law.

(2) A function the exercise of which has been delegated to a sub-Committee under this clause may, while the delegation remains unrevoked, be exercised from time to time by the sub-Committee in accordance with the terms of the delegation.

(3) A delegation under this clause may be made subject to such conditions or limitations as to the exercise of any function, or as to time or circumstances, as may be specified in the instrument of delegation.

(4) Despite any delegation under this clause, the Committee may continue to exercise any function delegated.

(5) Any act or thing done or suffered by a sub-Committee acting in the exercise of a delegation under this clause has the same force and effect as it would have if it had been done or suffered by the Committee.

(6) The Committee may, by instrument in writing, revoke wholly or in part any delegation under this clause.

(7) A sub-Committee may meet and adjourn as it thinks proper.

5.10 *Voting and decisions*

(1) Questions arising at a meeting of the Committee or of any sub-Committee appointed by the Committee are to be determined by a majority of the votes of members of the Committee or sub-Committee present at the meeting.

(2) Each member present at a meeting of the Committee or of any sub-Committee appointed by the Committee (including the person presiding at the meeting) is entitled to one vote but, in the event of an equality of votes on any question, the person presiding may exercise a second or casting vote.

(3) Subject to subclause 5.8(5), the Committee may act despite any vacancy on the Committee.

(4) Any act or thing done or suffered, or purporting to have been done or suffered, by the Committee or by a sub-Committee appointed by the Committee, is valid and effectual despite any defect that may afterwards be discovered in the appointment or qualification of any member of the Committee or sub-Committee.

Part 6 - General Meetings

6.1 *General meetings - Holding of*

The Club shall hold a General Meeting for Members and visitors each month at a location, date and time as determined by the Committee.

6.2 *Annual General Meetings - holding of*

(1) The Club must hold its Annual General Meetings within 6 months after the close of the Club's financial year.

6.3 *Annual General Meetings - calling of and business at*

1) The Annual General Meeting of the Club is, subject to the Act and to clause 6.2, to be convened on such date and at such place and time as the Committee thinks fit.

(2) In addition to any other business which may be transacted at an Annual General Meeting, the business of an Annual General Meeting is to include the following:

- (a) to confirm the minutes of the last preceding Annual General Meeting and of any Special General Meeting held since that meeting,
- (b) to receive from the Committee reports on the activities of the Club during the last preceding financial year,
- (c) to elect Office Bearers of the Club and Ordinary Committee Members,
- (d) to receive and consider any financial statement or report required to be submitted to members under the Act.

(3) An Annual General Meeting must be specified as such in the notice convening it.

6.4 *Special General Meetings - calling of*

(1) The Committee may, whenever it thinks fit, convene a Special General Meeting of the Club.

(2) The Committee must, on the requisition in writing of at least 5 per cent of the total number of members, convene a Special General Meeting of the Club.

(3) A requisition of members for a Special General Meeting:

- (a) must state the purpose or purposes of the meeting, and
- (b) must be signed by the members making the requisition, and
- (c) must be lodged with the Secretary, and
- (d) may consist of several documents in a similar form, each signed by one or more of the members making the requisition.

(4) If the Committee fails to convene a Special General Meeting to be held within 1 month after that date on which a requisition of members for the meeting is lodged with the Secretary, any one or more of the members who made the requisition may convene a Special General Meeting to be held not later than 3 months after that date.

(5) A Special General Meeting convened by a member or members as referred to in subclause (4) must be convened as nearly as is practicable in the same manner as General Meetings are convened by the Committee.

6.5 Notice

- (1) Except if the nature of the business proposed to be dealt with at a General Meeting requires a Special Resolution of the Club, the Secretary must, at least 14 days before the date fixed for the holding of the General Meeting, give a notice to each member specifying the place, date and time of the meeting and the nature of the business proposed to be transacted at the meeting.
- (2) If the nature of the business proposed to be dealt with at a General Meeting requires a special resolution of the Club, the Secretary must, at least 21 days before the date fixed for the holding of the General Meeting, cause notice to be given to each member specifying, in addition to the matter required under subclause (1), the intention to propose the resolution as a special resolution.
- (3) No business other than that specified in the notice convening a General Meeting is to be transacted at the meeting except, in the case of an Annual General Meeting, business which may be transacted under clause 6.3(2).
- (4) A member desiring to bring any business before a General Meeting may give notice in writing of that business to the Secretary who must include that business in the next notice calling a General Meeting given after receipt of the notice from the member.
- (5) In the case of monthly General Meetings, Special General Meetings and Annual General Meetings, it shall be deemed that each Member entitled to notice of meeting has been served with notice of meeting provided that due notice is included in the Club magazine mailed to all Members of the Club, and provided that the magazine is sent to all such Members to allow sufficient notice of meeting as provided herein.

6.6 Quorum for General Meetings

- (1) No item of business is to be transacted at a General Meeting unless a quorum of members entitled under this constitution to vote is present during the time the meeting is considering that item.
- (2) Five members present (being members entitled under this constitution to vote at a General Meeting) constitute a quorum for the transaction of the business of a General Meeting.
- (3) If within half an hour after the appointed time for the commencement of a General Meeting a quorum is not present, the meeting:
 - (a) if convened on the requisition of members, is to be dissolved, and
 - (b) in any other case, is to stand adjourned to the same day in the following week at the same time and (unless another place is specified at the time of the adjournment by the person presiding at the meeting or communicated by written notice to members given before the day to which the meeting is adjourned) at the same place.
- (4) If at the adjourned meeting a quorum is not present within half an hour after the time appointed for the commencement of the meeting, the members present (being at least 3) are to constitute a quorum.

6.7 Presiding member

- (1) The President or, in the President's absence, the vice-President, is to preside as chairperson at each General Meeting of the Club.
- (2) If the President and the vice-President are absent or unwilling to act, the members present must elect one of their number to preside as chairperson at the meeting.

6.8 Adjournment

- (1) The chairperson of a General Meeting at which a quorum is present may, with the consent of the majority of members present at the meeting, adjourn the meeting from time to time and place to place, but no business is to be transacted at an adjourned meeting other than the business left unfinished at the meeting at which the adjournment took place.
- (2) If a General Meeting is adjourned for 14 days or more, the Secretary must give written or oral notice of the adjourned meeting to each member of the Club stating the place, date and time of the meeting and the nature of the business to be transacted at the meeting.
- (3) Except as provided in subclauses (1) and (2), notice of an adjournment of a General Meeting or of the business to be transacted at an adjourned meeting is not required to be given.

6.9 Making of decisions

- (1) A question arising at a General Meeting of the Club is to be determined by either:
 - (a) a show of hands, or
 - (b) if on the motion of the chairperson or if 5 or more members present at the meeting decide that the question should be determined by a written ballot.
- (2) If the question is to be determined by a show of hands, a declaration by the chairperson that a resolution has, on a show of hands, been carried or carried unanimously or carried by a particular majority or lost, or an entry to that effect in the minutes of the Club, is evidence of the fact without proof of the number or proportion of the votes recorded in favour of or against that resolution.
- (3) If the question is to be determined by a written ballot, the ballot is to be conducted:
 - a) immediately in the case of a poll which relates to the election of the chairperson of the meeting or to the question of an adjournment; or
 - b) in any other case, in such manner and at such time before the close of the meeting as the chairperson directs;

and the resolution of the ballot on the matter shall be deemed to be a resolution of the meeting on that matter.

6.10 Special resolutions

The following matters require a Special Resolution:

- a) Change in the Club's name, objects, or Constitution
- b) Winding up the Club
- c) Distribution of surplus property on winding up
- d) Cancellation of registration of the Club
- e) Distribution of assets on cancellation of registration
- f) Transfer of registration to a different law
- g) Election of life members.

NSW Fair Trading must receive an application for authorisation of changes 'a' to 'f' within 28 days of the resolution.

6.11 Voting

- (1) On any question arising at a General Meeting of the Club a member has one vote only.
- (2) In the case of an equality of votes on a question at a General Meeting, the chairperson of the meeting is entitled to exercise a second or casting vote.
- (3) A member is not entitled to vote at any General Meeting of the Club unless all money due and payable by the member to the Club has been paid.

6.12 Postal Ballots

The Club may not hold a postal ballot to determine any issue or proposal.

6.13 Appointment of Proxies

- (1) Each Member shall be entitled to appoint another Member as proxy by notice given to the Secretary no later than 24 hours before the time of the meeting in respect of which the proxy is appointed.
- (2) The notice appointing the proxy shall be in the form set out in Appendix 2 to this constitution.

Part 7 - Miscellaneous

7.1 Insurance

The Club may effect and maintain insurance.

7.2 Funds – source

- (1) The funds of the Club are to be derived from entrance fees and annual subscriptions of members, donations and, such other sources as the Committee determines.
- (2) All money received by the Club must be deposited as soon as practicable and without deduction to the credit of the Club's bank or other authorised deposit-taking institution account.

7.3 Funds – management

- (1) Subject to any resolution passed by the Club in General Meeting, the funds of the Club are to be used in pursuance of the objects of the Club in such manner as the Committee determines.
- (2) All cheques, drafts, bills of exchange, promissory notes and other negotiable instruments must be signed by any 2 members of the Committee or employees of the Club, being members or employees authorised to do so by the Committee.

7.4 Change of name, objects and constitution

- (1) The Constitution and Statement of Purposes of the Club may be amended only by Special Resolution and in accordance with the Act.
- (2) An application to the Director General for registration of a change in the association's name, objects or constitution in accordance with section 10 of the Act is to be made by the Public Officer or a Committee Member.

7.5 Custody of books etc.

(1) Except as otherwise provided by this constitution, the Public Officer must keep in his or her custody or under his or her control all records, books and other documents relating to the Club.

(2) Records kept on behalf of the Club by a committee member shall be deemed to be under the control of the Public Officer.

7.6 Inspection of books etc.

(1) The following documents must be open to inspection, free of charge, by a member of the Club at any reasonable hour:

- (a) records, books and other financial documents of the Club,
- (b) this constitution,
- (c) minutes of all Committee meetings and General Meetings of the Club.

(2) A member of the Club may obtain a copy of any of the documents referred to in subclause (1) on payment of a fee of not more than \$1 for each page copied.

7.7 Service of notices

(1) For the purpose of this constitution, a notice may be served on or given to a person:

- (a) by delivering it to the person personally, or
- (b) by sending it by pre-paid post to the address of the person, or
- (c) by sending it by facsimile transmission or some other form of electronic transmission to an address specified by the person for giving or serving the notice.
- (d) by inclusion in the club's magazine.

(2) For the purpose of this constitution, a notice is taken, unless the contrary is proved, to have been given or served:

- (a) in the case of a notice given or served personally, on the date on which it is received by the addressee, and
- (b) in the case of a notice sent by pre-paid post, on the date when it would have been delivered in the ordinary course of post, and
- (c) in the case of a notice sent by facsimile transmission or some other form of electronic transmission, on the date it was sent or, if the machine from which the transmission was sent produces a report indicating that the notice was sent on a later date, on that date.

7.8 Financial year

The financial year of the Club is:

- (a) the period of time commencing on the date of incorporation of the Club and ending on the following 30 June, and
- (b) each period of 12 months after the expiration of the previous financial year of the Club, commencing on 1 July and ending on the following 30 June.

7.9 Dissolution of the Club

The Club shall be dissolved if:

- (a) the total of Members of financial status is less than five, in which case dissolution shall be deemed to have taken place forthwith upon the reduction to the number;

or

- (b) a General Meeting of the Club shall so determine, by special resolution put upon proper notice whether or not such General Meeting is convened for the specific purpose of considering such special resolution.

7.10 Surplus of property

(1) At the first General Meeting of the Club, the Club shall pass a special resolution nominating an incorporated Club as the Club in which is to invest its surplus property pursuant to section 53(2) of the Act in the event of the winding up or the cancellation of the incorporation of the Club.

(2) The incorporated Club so nominated shall be one which fulfils the requirements of the Act.

7.11 Conditional registration

(1) The Club assists Members in obtaining Conditional Registration through the New South Wales Roads and Maritime Services (RMS)

(2) Such assistance may include vehicle inspections to ensure the ongoing roadworthiness of Members' vehicles, as well as certification to the RMS that the vehicles are roadworthy and that the Member is a current financial Member of the Club.

(3) Assistance will only be provided to Members who wish their Marque or other vehicles as agreed by the Club Registrar to obtain Conditional Registration through the RMS.

(4) The Club will ensure that its officers abide by such rules and regulations governing Conditional Registration as issued by the RMS from time to time.

(5) The Club will take all necessary steps to ensure that Members who hold Conditional Registration abide by such rules and regulations governing Conditional Registration as prescribed by the RMS from time to time.

(6) Each vehicle on Conditional Registration will be covered by a minimum of Third Party Property insurance coverage.

(7) The Club shall elect one (1) officer as Club Registrar to maintain an up to date register of Marque vehicles in the Club including those on Conditional Registration. This officer will act as the certifying officer as specified in (b) above.

(8) Authorised Club events will be those events programmed in Flat Chat magazine including written invitations announced in the Secretary's Report and may or may not be included in Flat Chat magazine.

(9) The vehicle on Conditional Registration shall be used for authorised events of Clubs, nominated as per the RMS Historical Declaration Form, travelling to and from such events and for necessary servicing and may not be used on other occasions.

(10) Necessary servicing shall be limited to a distance not exceeding a 15-kilometre radius from said vehicle's regular place of garaging. Servicing requiring longer distances require the authorisation of the Club Registrar or delegate.

AUSTIN HEALEY OWNER'S CLUB NSW Inc.

(Incorporated under the *Associations Incorporation Act 2009*)

Application for Membership

I,

[full name of applicant]

Of [address]

.....

Occupation

hereby apply to become a Member/Associate Member of the above named incorporated Club. In the event of my admission as a member, I agree to be bound by the constitution of the Club for the time being in force.

.....

Signature of applicant

Date

If applying for full membership please provide details of your present or past ownership of a vehicle bearing the Healey name (e.g. Healey, Austin Healey, Jensen Healey)

Model	Registration or VIN	State
	.	

I,

[full name] a member of the Club, nominate the applicant for membership of the Club.

.....

Signature of proposer

Date

I,

[full name] a member of the Club, second the nomination of the applicant for membership of the Club.

.....

Signature of seconder

Date

AUSTIN HEALEY OWNER'S CLUB NSW Inc.

(Incorporated under the *Associations Incorporation Act 2009*)

Form of Proxy

For the **General / Annual General / Special General Meeting** to be held on [Date]

I,

[please insert your name in block capitals]

being a financial Member of the Austin Healey Owner's Club (NSW) Inc. appoint, or if no person is named or if the named person does not attend the meeting, the Chairperson of the meeting as my proxy to vote in accordance with the following directions (or if no directions are given, to vote as the proxy sees fit).

.....,

[Insert Name of Financial Member to whom Proxy is given – in block capitals please]

Motion or Nomination	For	Against	Abstain

Signed Dated

Return completed proxies:

by email with subject 'Proxy' to austinhealeynsw@ozemail.com.au, or post to:

The Secretary AHOC (NSW) Inc., PO Box 2754 North Parramatta 1750

Proxies must be received no later than 24 hours before the meeting for which the proxy is to apply.

AUSTIN HEALEY OWNER'S CLUB NSW Inc.

(Incorporated under the *Associations Incorporation Act 2009*)

Nomination Form

The following positions are to be elected at the Annual General Meeting

Officers	Ordinary Committee Members	Non-Committee Roles
President	Editor	Billeting Officer
Vice President	Public Relations	CMC Delegate/s
Treasurer	Regalia Officer	Competition Assistant
Secretary	Technical Officer / Club Equipment	Conditional Registration Inspector(s)
Membership Secretary	Social Secretary	Historian
Club Registrar	Website	Librarian
		Spare Parts Secretary

We
[Insert proposer's name] [Insert seconder's name]

being financial members of the Austin Healey Owner's Club (NSW) Inc. nominate the following members for election to the Committee.

Signed by the proposer

Signed by the seconder

.....

.....

Dated

Name of Member nominated [Block capitals]	Position nominated [Block capitals]	Nomination Accepted by [Signature of Nominee]

Return completed nominations:

by email with subject 'Nomination' to austinhealeynsw@ozemail.com.au, or post to:

The Secretary AHOC (NSW) Inc., PO Box 2754 North Parramatta 1750

Nominations must be received no later than 7 days before the Annual General Meeting.